

		The Court will hear argument from Mr. Ruszecki as to all efforts made to confirm the address of Mr. Castenada, as referenced in Para. 3 of his Declaration. In the event Mr. Ruszecki is able satisfactorily address the efforts made, the court will grant the motion. If counsel does not appear at the hearing, the motion will be denied. In the event the motion is granted, Mr. Ruszecki will be required to submit a new order with all pending dates. The order will become effective upon filing a proof of service of the order on Mr. Castenada. Mr. Ruszecki shall give notice.
11	Arck Services, LLC v. Bekam	Cont. to 8/17.
12	FDC Tech, Inc. v. Intelligenceline.com	The motion by plaintiff FDC Tech, Inc. for an order permitting substituted service of process by electronic mail on defendants pursuant to Code of Civil Procedure §413.30 is DENIED, without prejudice. Code of Civil Procedure §413.30(a) states: "If no provision is made in this chapter or other law for the service of summons, or if a plaintiff, despite exercising reasonable diligence, has been unable to effect service of the summons by any of the methods authorized under this chapter, the court in which the action is pending may, upon motion, direct that summons be served in a manner that is reasonably calculated to give actual notice to the party to be served, including by electronic mail or other electronic technology, and that proof of such service be made as prescribed by the court. (2) A plaintiff seeking to establish reasonable diligence under this section shall set forth facts detailing all attempts to serve the defendant by each of the methods prescribed by statute, including facts demonstrating why each method was unsuccessful at every address or location where the defendant is likely to be found." Here, the motion is supported by a single declaration of David Gonzalez, an investigator at Affirm Investigative Solutions, LLC. He states that he did not find any "reliable, actionable contact information identifying the individuals or entities operating or controlling the subject websites." (Gonzalez Decl. ¶15) This declaration falls well short of the required showing of reasonable diligence. Although the declaration refers to the minclaw.com website, it is not explained how this is relevant to this motion. There is no evidence of the attempts made to serve the defendants by each of the methods prescribed by statute. Also, while the motion refers to various efforts to locate the defendants, not only are those arguments significantly lacking in factual detail, attorney argument is not admissible evidence. "Evidence received at a law and motion hearing must be by declaration or request for judicial notice without testimony or cross-examination, unless the court orders otherwise for good cause shown." (Rule 3.1306(a).)

		Finally, there is no evidence as to what email address would be used for substituted service for each of the three defendants or why that email address is appropriate. For the forgoing reasons, the motion is DENIED, without prejudice. The Clerk shall give notice.
13	Zou v. Ford Motor Co. et al	Before the Court is the Demurrer filed on 1/5/26 by Defendants Ford Motor Company ("Ford") and David Wilson's Villa Ford of Orange ("Dealer") (together "Defendants"), as to the First Amended Complaint ("FAC") filed by Plaintiff Xing Zou ("Plaintiff") on 12/2/25. The Demurrer as to the First, Second, Third and Fourth Causes of Action (each a "COA"), to the extent based on the time limits in C.C.P. § 871.21, is OVERRULED. The Court rejects application of the six-year statute of repose under § 871.21(b). "[A] statute shortening the period of limitations cannot be applied retroactively to wipe out an accrued cause of action that is not barred by the then applicable statute of limitations" (<i>Niagara Fire Ins. Co. v. Cole</i> (1965) 235 Cal.App.2d 40, 43.) Thus, "retrospective application of a shortened limitations period is permissible provided the party has a reasonable time to avail himself of his remedy before the statute cuts off his right." (<i>Aronson v. Superior Court</i> (1987) 191 Cal.App.3d 294, 297-298.) The statute became effective on January 1, 2025, but by then, more than six years had elapsed since Plaintiff's purchase of the vehicle. Plaintiff's rights would thus have been immediately cut off if § 871.21 were applied. However, the Demurrer as to COA 4, based on Comm. Code §2725, is SUSTAINED with 15 days leave to amend. The limitations period for breach of the implied warranty of merchantability under the Song-Beverly Consumer Warranty Act is four years. (Comm. Code §2725; <i>Mexia v. Rinker Boat Co., Inc.</i> (2009) 174 Cal.App.4th 1297, 1304.) As the vehicle at issue was purchased "on or about February 10, 2018 (FAC ¶ 7), the claim thus appears to be time-barred. Where a pleading shows on its face that a claim would otherwise be time-barred, the burden is on the plaintiff to state specific facts to show delayed discovery: conclusory allegations will not suffice. (<i>Carrillo v. County of Santa Clara</i> (2023) 89 Cal.App.5th 227, 234.) Here, Plaintiff has stated only vague and conclusory allegations to support his delayed discovery claim. (See FAC ¶¶ 33, 37, 42-44.) For COA 5, the Demurrer is OVERRULED. COA 5 asserts a claim for Negligent Repair against Dealer. Defendants argue that the claim is barred by the economic loss rule ("ELR"). But the ELR does not apply to a claim based on negligent performance of services. (<i>North American Chemical Co. v. Superior Court</i> (1997) 59 Cal.App.4th 764, 777.)